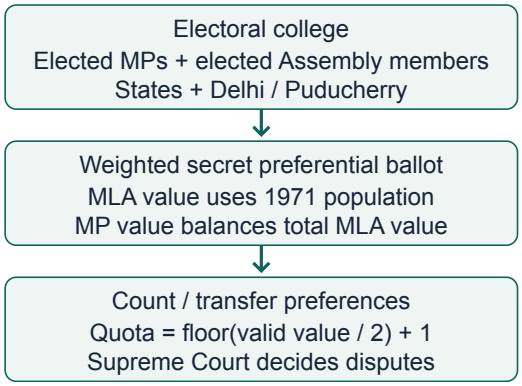
President

1. Constitutional position and election

- **52-78, Part V:** Union executive comprises President, Vice-President, PM, Council of Ministers and Attorney-General. President = **Head of State/first citizen**, symbol of unity; PM-led ministry exercises real executive authority.
- **54 electoral college: elected MPs of both Houses + elected State Assembly members + elected Delhi/Puducherry Assembly members**. UT inclusion follows **70th Amendment, 1992** (effective 1995); do not automatically include every UT Assembly.
- Excluded: nominated MPs/MLAs; **all Legislative Council members**. A dissolved Assembly has no electors until reconstituted; vacancies do not invalidate presidential election.
- **55:** uniform State representation and approximate Union-State parity; indirect election suits parliamentary government, avoids costly direct mandate and preserves State participation. Constitution calls it proportional representation/STV; for **one office**, it functions as preferential transferable voting, not proportional allocation among several seats.
- **Secret ballot; one ballot, ranked preferences; weighted vote values.** No party whip binds presidential voting. Quota = **floor(total valid vote value ÷ 2) + 1**. Count first preferences; if no quota, eliminate lowest candidate, transfer according to next available preferences under counting rules; continue to result.
- **71:** SC decides presidential-election disputes, decision final; incomplete college no ground by itself; acts before election declared void remain valid.

2. Vote-value calculation

- **MLA:** State's **1971 population ÷ elected Assembly strength ÷ 1,000**; if remainder after multiples of 1,000 is **at least 500**, add one. Value applies to each elected MLA, not population-proportional ballots cast separately.
- **MP:** total assigned MLA vote value ÷ total elected strength of both parliamentary Houses; fraction **greater than one-half rounds up**, other fractions disregarded.
- **84th Amendment, 2001:** 1971 population continues until figures of **first census taken after 2026** are published; it does not automatically switch population base on 1 January 2027.
- **2022 illustration, not fixed forever:** 4,033 Assembly electors + 776 MPs (543 LS + 233 RS) = **4,809 electors**; each MP value **700**; MLA total **5,43,231**, MP total **5,43,200**, combined **10,86,431**. Actual voters/valid votes may differ from authorised total.
- **2022 MLA values:** AP 159; Arunachal 8; Assam 116; Bihar 173; Chhattisgarh 129; Goa 20; Gujarat 147; Haryana 112; Himachal 51; Jharkhand 176; Karnataka 131; Kerala 152; MP 131; Maharashtra **175**; Manipur 18; Meghalaya 17; Mizoram 8; Nagaland 9; Odisha 149; Punjab 116; Rajasthan 129; Sikkim 7; Tamil Nadu 176; Telangana 132; Tripura 26; Uttarakhand 64; UP **208**; West Bengal 151; Delhi 58; Puducherry 16.
- Table arithmetic correction: Maharashtra **175 × 288 = 50,400**, not 178 × 288. **UP highest MLA value; Sikkim lowest (2022)**. Population/seat figures are inputs to formula, not current demographic statistics.



Election method and representation.

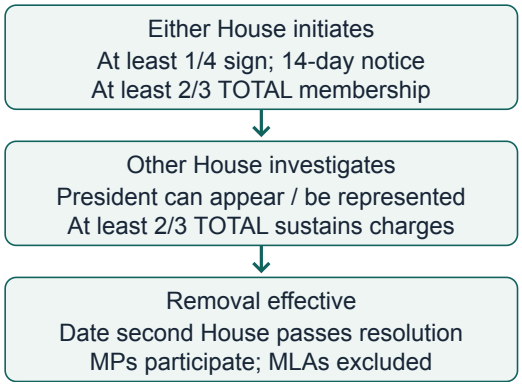
3. Qualifications, nomination and oath

- **58:** Indian citizen, **35+**, qualified for Lok Sabha election, no prohibited office of profit. Sitting President/VP, Governor and Union/State Minister are constitutional exceptions to office-of-profit disqualification.
- **50 proposers + 50 seconders; ₹15,000 deposit**. Before 1997: 10 each/₹2,500. Statutory forfeiture: unsuccessful candidate whose valid votes **do not exceed one-sixth of votes necessary to secure election**; do not substitute the ordinary constituency-election “one-sixth of valid votes polled” formula.
- **60 oath:** faithfully execute office; preserve/protect/defend Constitution and law; serve people's well-being. Administered by **CJI**, or senior-most available SC judge in absence; acting/discharging President also takes oath.
- **59 conditions:** cannot remain MP/State legislator; seat vacated on assuming Presidency; no other office of profit; official residence rent-free; emoluments/allowances fixed by Parliament, **not reduced during term**.
- Salary increased to **₹5 lakh/month** by Finance Act 2018, effective **1 January 2016**. Retired President pension **50% of presidential emoluments/month**; furnished residence, staff, office, medical/travel benefits under law; qualifying deceased President's spouse pension **50% of retired-President pension**. Chapter's ₹1 lakh/₹20,000 annual office-expense figures are historical statutory figures, not salary or pension amounts.
- **361 immunity:** not answerable to courts for official performance; no criminal proceedings/arrest/imprisonment during term; personal civil proceedings require **two months' written notice**. Governmental action remains reviewable; immunity does not prevent impeachment/investigative House procedure.

4. Term, impeachment and vacancies

- **56/57:** five years from entry; resign to **Vice-President**; eligible for repeated re-election, **no Indian two-term ceiling**; outgoing President continues until successor assumes office. Rajendra Prasad served two terms.
- **61 impeachment:** “violation of Constitution” (not defined); either House initiates. Notice signed by **at least one-fourth total members**, **14 days' notice**; initiating resolution **at least two-thirds total membership**.
- Other House investigates; President may appear/be represented. If charges sustained by **at least two-thirds total membership**, removal effective that resolution's date. **Not two-thirds merely present/voting**.
- **Nominated MPs participate in impeachment; MLAs do not**. Quasi-judicial parliamentary procedure; distinguish electoral college from investigating/removing body.

- **62:** term-end election before expiry; holdover if delayed, so VP does not automatically take over at five-year mark. Casual vacancy (death/resignation/removal/otherwise): election **within six months**, successor gets **full five-year term**.
- VP acts during casual vacancy or discharges functions during temporary incapacity. If both offices unavailable, **CJI/senior-most available SC judge** under President (Discharge of Functions) Act, 1969. Acting person receives presidential powers/immunities/emoluments.
- Death in office: **Zakir Husain 1969; Fakhruddin Ali Ahmed 1977**. **V.V. Giri** acted in 1969, then resigned VP to contest; **CJI M. Hidayatullah** discharged functions until new President took office.



Article 61: use total-membership thresholds.

5. Executive and legislative powers

- **53/77:** Union executive action in President's name; authentication, business-transaction and ministerial allocation rules. PM appointed; other Ministers on PM advice; pleasure exercised consistently with parliamentary responsibility.
- Appointments include Attorney-General, CAG, EC members, UPSC chair/members, Governors, FC chair/members, SC/HC judges **under respective constitutional/statutory procedures**, not unlimited personal choice.
- **78:** seek administration/legislation information from PM; require individual Minister's decision placed before Council. Appoint specified backward-class commission/ISC; UT administration through administrators; Scheduled/tribal-area powers.
- **85/87/88:** summon/prorogue Parliament, dissolve **LS only**; joint sitting called under 108, presided by LS Speaker; special address after each general election and first session each year; messages to Houses.
- If both presiding offices vacant, appoint specified member to perform LS Speaker/RS Chairman duties. **12 nominated RS members:** literature, science, art, social service. Anglo-Indian LS nomination ceased **25 January 2020** under the 104th Amendment changes; not a current two-member nomination power.
- Parliamentary disqualification under **103:** President decides according to EC opinion in applicable cases; **anti-defection decided by House presiding officer**, not all disqualifications by President.
- Prior recommendation: **3** State reorganisation; **Money Bills under 110/117**; financial Bills as specified; **274** State-interested taxes/distribution. Bill involving CFI expenditure may require recommendation **before passage**, not necessarily introduction. **304(b)** specified State trade-restriction Bills need prior sanction.
- Causes CAG/UPSC/FC reports to be laid; regulations for specified UTs, with Puducherry conditions; Ladakh regulatory route under **J&K Reorganisation Act 58(2)**.

6. Financial, judicial, diplomatic, military and emergency powers

- **112:** annual financial statement laid; Money Bills require recommendation; no grant demand without recommendation; Contingency Fund advances under law; **FC every five years or earlier**.
- Appoints SC/HC judges; **143** references public-important law/fact questions to SC under its conditions; advice generally advisory, not an appellate judgment between litigants. **72** clemency power.
- Represents State externally; treaties/diplomatic credentials in President's name. **Not every treaty requires prior parliamentary ratification**; legislation may be necessary where domestic law/rights need change, notably under **253**.
- Supreme command of defence forces; service chiefs appointed through government process; war/peace decisions within constitutional parliamentary/executive framework, not unilateral personal military authority.
- **352:** security Emergency, written Cabinet advice; **356/365:** constitutional State breakdown; **360:** financial stability/credit. **359** enforcement order cannot include 20/21; 358 applies only to 19/external Emergency. President's Rule cannot assume HC powers.

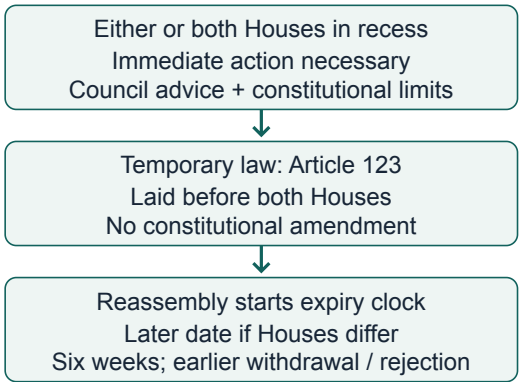
7. Veto: four terms, three textbook Indian categories

- **Absolute:** withhold assent; **suspensive:** return for reconsideration; **pocket:** keep pending (textbook label); **qualified:** override requires higher majority, US comparison. India has no US-style qualified veto.
- **111 parliamentary ordinary Bill:** assent, withhold or return once; after duly repassed with/without amendment, **shall not withhold assent**. **Money Bill cannot be returned**, though Article 111 permits assent/withholding; normally recommended government Bill receives assent.
- **368 constitutional amendment:** assent mandatory after duly passed procedure, **24th Amendment, 1971**; no return/veto. State legislature cannot initiate a constitutional-amendment Bill; specified States may ratify parliamentary amendment.
- **201 reserved State Bill:** assent/withhold; non-Money Bill may be returned through Governor; State legislature reconsiders **within six months**, but repassage does not create 111's mandatory-assent rule for President.
- **2025 Presidential Reference:** Governor's non-Money Bill withholding is linked to return; no judicially fixed Governor/President assent timetable or deemed assent. Textbook “pocket veto” terminology must not imply constitutional permission for limitless arbitrary Governor inaction; limited judicial scrutiny of prolonged unexplained Governor delay remains.
- Historical examples: **1954 Rajendra Prasad - PEPSU Appropriation Bill**; **1991 R. Venkataraman - MPs' salary/allowance/pension amendment**; **1986 Zail Singh - Indian Post Office amendment** held pending, returned by successor in 1989 and dropped.
- Private-member Bill/new ministry advising withdrawal are textbook absolute-veto contexts, not the only conceivable legally relevant situations. Article 111 gives no express fixed decision period; US ten-day comparison is a different constitutional scheme.

8. Ordinances - Article 123

- Same force/effect as parliamentary law, **temporary and subject to Constitution**. Either/both Houses not sitting; cannot issue when **both simultaneously in session**; immediate-action necessity, Council advice and judicial review apply.

- Legislative competence only where Parliament competent; constitutional/FR limits; may amend/repeal statutes, alter taxes, be retrospective subject to limits; **cannot amend Constitution**. National Emergency not prerequisite.
- Must be laid before both Houses; ceases **six weeks after reassembly**, calculated from **later date** if Houses reassemble differently; earlier if both pass disapproval (later resolution controls); President may withdraw on advice.
- Continuing legislation requires parliamentary enactment replacing ordinance, **not a resolution magically converting it into an Act**. Chapter's **six months + six weeks** is a conventional maximum illustration using session-gap rule; remember actual constitutional reassembly/expiry rules.
- **D.C. Wadhwa:** repeated re-promulgation to avoid legislature unconstitutional; Bihar example **256 ordinances, 1967-81**, extended one to fourteen years. Decision commonly cited **(1987) 1 SCC 378**, delivered **20 December 1986**.
- **Krishna Kumar Singh, 2017:** mandatory legislative laying; re-promulgation constitutional abuse; **do not assume every right/action survives an expired ordinance automatically**. Survival depends on constitutional/public-interest analysis; blanket “all completed acts remain fully valid” is misleading.
- **R.C. Cooper, 1970** and 44th removal of 38th immunity underpin review of necessity/satisfaction. Replacement-Bill statement must explain need for immediate ordinance legislation.



Ordinances require legislative scrutiny.

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9. Pardoning - Article 72

- Covers **court-martial punishment; offences within Union executive sphere; every death sentence**. Mercy complements judiciary, corrects error/undue harshness; not an ordinary appeal.
- **Pardon:** removes punishment/conviction consequences as legally applicable. **Commutation:** lighter kind of punishment. **Remission:** shorter duration, same character. **Respite:** lesser punishment for special circumstance, e.g. pregnancy/disability. **Reprieve:** temporary stay, especially execution, to seek mercy.
- **161 Governor:** State-executive-sphere offences; no court-martial power; can suspend/remit/commute a death sentence within jurisdiction, while **death-sentence pardon lies with President** under conventional distinction.
- **Kehar Singh (judgment 1988; commonly reported 1989):** no right to oral presidential hearing; President may reassess evidence/differ from judicial view; acts on Union Cabinet advice; judicial review limited to constitutionally improper exercise. **Maru Ram, 1980:** advice binding.
- Mercy is not immune from review for mala fides, arbitrariness, irrelevant considerations or discrimination; courts do not ordinarily substitute their preferred mercy outcome.

10. Advice and limited situational choice

- **53 + 74 + 75:** powers formally vested in President; ministry advises; **collectively responsible to LS**. **42nd** made advice explicitly binding; **44th** permits reconsideration once; reconsidered advice binds.
- **74(2):** court cannot inquire what ministerial advice was tendered; underlying material/action may still be reviewed as permitted.
- Situational judgment: identify PM likely to command LS confidence in hung House/sudden vacancy; handle majority loss and dissolution requests consistently with floor test/alternative government. **Not general independent policy discretion**; cannot dismiss a ministry that retains LS confidence simply on personal disagreement.
- **K.R. Narayanan:** returned UP President's Rule recommendation **October 1997**, Cabinet withdrew; returned Bihar proposal **September 1998**, later renewed advice led to Rule **February 1999**.

11. Presidential election chronology in the chapter

- **1952/1957 Rajendra Prasad** (83.81% / 99.35%); main rivals K.T. Shah / N.N. Das. **1962 S. Radhakrishnan** (98.24%), Ch. Hari Ram. **1967 Zakir Husain** (56.23%), K. Subba Rao.
- **1969 V.V. Giri** (50.22%), N. Sanjeeva Reddy. **1974 Fakhruddin Ali Ahmed** (80.18%), Tridib Chaudhuri. **1977 N. Sanjeeva Reddy unopposed**.
- **1982 Giani Zail Singh** (72.73%), H.R. Khanna; **1987 R. Venkataraman** (72.29%), V.R. Krishna Iyer; **1992 Shankar Dayal Sharma** (65.86%), George Swell; **1997 K.R. Narayanan** (94.97%), T.N. Seshan.
- **2002 A.P.J. Abdul Kalam** (89.58%), Lakshmi Sahgal; **2007 Pratibha Patil** (65.82%), B.S. Shekhawat; **2012 Pranab Mukherjee** (**69.31%**, calculated from 7,13,763 of 10,29,750 valid vote value; chapter percentage is incorrect), P.A. Sangma; **2017 Ram Nath Kovind** (65.65%), Meira Kumar; **2022 Droupadi Murmu** (64.03%), Yashwant Sinha. Percentages are historical chapter figures, not vote-share predictions.
- First woman President **Pratibha Patil**; Murmu first tribal woman President. **1977 only unopposed election in chapter; 1969 highly competitive; Rajendra Prasad alone repeated elected full term**.

12. One-minute recall

- **President election = elected MPs + elected MLAs; impeachment = all MPs, no MLAs. 35 years; 50+50; ₹15,000; five years; casual election six months.**
- **61 = two-thirds TOTAL in each House; 352 approval = total majority + two-thirds PRESENT/VOTING.**
- **111 repassed Union ordinary Bill binds; 201 repassed reserved State Bill does not. 123 = later reassembly + six weeks. 72 = Union / military / death.**
- Head of State exercises constitutional power **through responsible government**, with limited safeguards, consultation and situational judgment.

References

- Constitution · ECI election rules · Emoluments Act.
- SC assent opinion, 2025 · SC ordinance-survival discussion.